

Court No. - 36

Case :- WRIT - C No. - 52598 of 2010

Petitioner :- Anand Kumar Gupta

Respondent :- State Of U.P. Thru' Secry., Energy And Others

Petitioner Counsel :- Ram Kishor Gupta

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Sanjay Misra,J.

Sri Rajesh Tripathi may obtain instruction within a week.

As prayed, put up as a fresh case on 6th September, 2010.

Order Date :- 30.8.2010

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Case :- WRIT - C No. - 52598 of 2010

Petitioner :- Anand Kumar Gupta

Respondent :- State Of U.P. Thru' Secry., Energy And Others

Petitioner Counsel :- Ram Kishor Gupta

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Rajesh Chandra,J.

On the request of Sri Rajesh Tripathi, advocate, put up day after tomorrow i.e. 08.09.2010 as fresh.

Order Date :- 6.9.2010

M/A.

AFR

Court No. - 32

Case :- WRIT - C No. - 52598 of 2010

Petitioner :- Anand Kumar Gupta

Respondent :- State Of U.P. Thru' Secry., Energy And Others

Petitioner Counsel :- Ram Kishor Gupta

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Kashi Nath Pandey, J.

Heard Shri Ram Kishor Gupta for the petitioner. Learned Standing Counsel appears for respondent nos. 1, 4, and 5. Shri Rajesh Tripathi appears for the respondent nos. 2 and 3.

This is the 4th writ petition filed by the petitioner in respect of a theft case in which the petitioner was found drawing the power unauthorizedly for running his oil mill. In the 1st Writ Petition No. 50035 of 2005, the Court directed that since the petitioner has filed objections on 13.6.2005, and the statutory period provided under paragraph 8.2 of the U.P. Electricity Supply Code, 2005, has expired and no hearing has taken place, the respondents were directed to install a fresh meter at the premises of the petitioner and restore his supply forthwith. The Court did not ask the petitioner to deposit any amount, before restoring his connection.

The Corporation restored the petitioner's connection. The petitioner filed a 2nd Writ Petition No. 27467 of 2006, alleging that his preliminary grievance, with regard to recovery of Rs. 5,32,873/- has not been decided so far. Shri Ranjeet Saxena appearing for the Corporation informed the Court that the petitioner's representation was decided on 10.4.2006. The Court found that with the dismissal of the representation, the writ petition has become infructuous, and that if the petitioner is aggrieved by the order dated 10.7.2006, he may file a fresh writ petition.

The petitioner filed an appeal before the Superintending Engineer/Chairman, Consumer Grievance Redressal Forum against the bills dated 10.4.2006 of Rs. 5,32,873/- and the bill dated 29.8.2008 of Rs. 3,84,822/-. It is contended that the appeals are still pending and have not been disposed of so far. The petitioner in the meantime applied to take benefit of a Compounding Scheme dated 20.3.2010, but did not pursue the matter. He has now challenged the recovery of Rs. 8,16,091/- and other dues and interest for which the citation was issued on 11.8.2010 on the ground that his electricity connection was

permanently disconnected on 10.8.2008 and that his appeal has not been decided so far. In para-20 of the writ petition it is stated that the petitioner had filed the 3rd writ petition No. 46868 of 2007, which was disposed of on 25.9.2007 on the ground of availability of alternative remedy with observations of the right of the petitioner to file an appeal.

Shri Rajesh Tripathi appearing for the Corporation states that the permanent disconnection report dated 10.8.2008 is only a report in preparation of permanent disconnection. The electricity connection can be permanently disconnected only after the deposit of the entire pending dues. The petitioner was sanctioned a load of 62.439 H.P. In the checking dated 28.5.2005, he was found to be drawing the electricity direct from the cable, by-passing the meter. The connected load was found 122 H.P.. The petitioner was given a notice to deposit Rs. 24, 40,000/- as compounding fees. His objections were considered, after the Court directed on 20.7.2005 to re-connect the electricity, by order dated 10.4.2006 against which the petitioner has filed an appeal.

Shri R.K. Gupta submits that under Section 56 (2) of the Electricity Act, 2003, a sum due from the consumer cannot be recovered after a period of two years from the date when it became due unless it has been shown to be continuously recoverable as arrears for charges of electricity supply and the licensee has not cut off the supply of electricity. He would submit that the dues have become barred by limitation provided under Section 56 (2) of the Act. The electricity was connected on 3.8.2007. There was no stay order against the final assessment dated 10.4.2006, and that the petitioner's appeal is still pending.

A provisional assessment was made on the day, when the petitioner was found drawing electricity unauthorisedly. Under the orders of the Court the meter was installed and the electricity supply was restored on the ground that his objection was not decided. His objection thereafter decided by the order dated 10.4.2006 initiating the recovery of rs. 5, 32, 878/- and thereafter by bill dated 28.8.2007 for Rs. 3, 84, 822/-. The provision of Section 56 (2) of the Act is thus not attracted against the petitioner as the recovery is still pending, and is subject matter of the appeal.

The impugned recovery certificate was issued against the petitioner both for the electricity dues and surcharge for which the petitioner deposited the amount for compounding but did not care to deposit the compounded amount of dues.

In the facts and circumstances, in which the petitioner's electricity was restored by the order of the Court and that his appeal was directed to be considered and decided, we do not find that the provisions of Section 56 (2) of the Electricity Act, 2003, are not attracted.

This 4th writ petition is **dismissed** with observations that the pending appeal be decided expeditiously.

Order Date :- 8.9.2010

RKP